

24STCV22842 24STCV22842

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 24STCV22842 Hearing Date: September 24, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 20

Hearing Date: Thursday, September 24, 2026

Case Name: Victor Chen v. Diana Calderon, et al.

Case No.: 24STCV22842

Motion: Motion for Terminating Sanctions

Moving Party: Defendant Diana Calderon

Responding Party: Unopposed

Notice: OK

Ruling: The motion for terminating sanctions is GRANTED.

If counsel do not submit on the tentative, they are strongly encouraged to appear by LACourtConnect rather than in person due to the COVID-19 pandemic.

BACKGROUND

On September 5, 2024, Plaintiff Victor Chen filed a complaint against Diana Calderon for motor vehicle and negligence following a September 6, 2022, automobile collision.

On March 11, 2026, the Court granted the motions to compel initial responses of Defendant Diana Calderon with respect to form and special interrogatories propounded on Plaintiff Victor Chen. Defendant Calderon now seeks terminating sanctions against Plaintiff Victor Chen for the failure to comply with the Court's discovery order.

DISCUSSION

APPLICABLE LAW

"California discovery law authorizes a range of penalties for conduct amounting to 'misuse of the discovery process.' " (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 991.) Misuses of the discovery process include "[u]sing a discovery method in a manner that does not comply with its specified procedures" (Code Civ. Proc. § 2023.010(b)); "[f]ailing to respond or to submit to an authorized method of discovery" (id., subd. (d)); "[m]aking an evasive response to discovery" (id., subd. (f)); and "[d]isobeying a court order to provide discovery" (id., subd. (g).) Code Civ. Proc. § 2023.030 authorizes a trial court to impose monetary sanctions, issue sanctions, evidence sanctions, or terminating sanctions against "anyone engaging in conduct that is a misuse of the discovery process." In selecting the appropriate sanction, a trial court "should consider both the conduct being sanctioned and its effect on the party seeking discovery," and should tailor the sanction to fit the harm caused by the abuse of the discovery process. (Doppes, supra, 174 Cal.App.4th at p. 992.) "The trial court cannot impose sanctions for misuse of the discovery process as a punishment." (Ibid.)

A terminating sanction "is a proper sanction to punish the failure to comply with a rule or an order only if the court's authority cannot be vindicated through the imposition of a less severe alternative." (Rail Services of America v. State Comp. Ins. Fund (2003) 110 Cal.App.4th 323, 331 [concerning dismissal for a plaintiffs' refusal to comply with discovery]; see also Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-80 ["[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction."].)

APPLICATION TO FACTS

On September 10, 2026, the court continued the hearing to September 24, 2026, in order to allow Plaintiff to file any opposition to the motion by September 11, 2026. The court electronic filing system shows no opposition filed on or after the extended deadline. Plaintiff appears to have abandoned the case, or at a minimum refuses to participate and comply with discovery obligations on an action brought by Plaintiff. The Court therefore grants the unopposed motion for terminating sanction against Plaintiff Victor Chen. The Complaint is stricken and dismissed. No further sanctions.

The court vacates the May 8, 2028, trial date.

Defendant to submit a judgment.

CONCLUSION

Defendant Calderon's Motion for Terminating Sanctions is GRANTED.

Calderon to give notice.

If counsel do not submit on the tentative, they are strongly encouraged to appear by LACourtConnect rather than in person due to the COVID-19 pandemic.